

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
PATRICK MCDOWELL,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER
CRYSTALLEE OTERO, SHIELD NUMBER
10151, POLICE OFFICER SANCHEZ, BADGE
NUMBER UNKNOWN, AND LIEUTENANT
JAVIER SANTOS, BADGE NUMBER 4761,Defendants.
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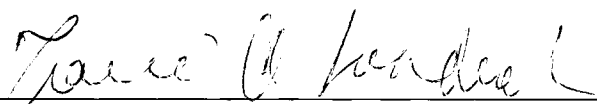
Index No.:

Date Purchased:

Plaintiff designates New York
County as the place of trial.Basis of venue is place
of occurrence.**SUMMONS**Plaintiff resides at
18-18 Hazen Street
East Elmhurst, New York 11370

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, New York
July 30, 2018
TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
PATRICK MCDOWELL
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

Defendants' addresses:

CITY OF NEW YORK
100 Church Street
New York, New York 10007POLICE OFFICER CRYSTALLEE OTERO,
BADGE NUMBER 10151
POLICE OFFICER SANCHEZ,
BADGE NUMBER UNKNOWN
20th Precinct
120 West 82nd Street
New York, New York 10024-5502

LIEUTENANT JAVIER SANTOS,
BADGE NUMBER UNKNOWN
24th Precinct
151 West 100th Street
New York, New York 10025-5146

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
PATRICK MCDOWELL,

Plaintiff,

Index No.:

-against-

CITY OF NEW YORK, POLICE OFFICER
CRYSTALLEE OTERO, SHIELD NUMBER
10151, POLICE OFFICER SANCHEZ, BADGE
NUMBER UNKNOWN, AND LIEUTENANT
JAVIER SANTOS, BADGE NUMBER 4761,**VERIFIED COMPLAINT**Defendants.
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Plaintiff PATRICK MCDOWELL by and through his attorneys, TRACIE A. SUNDACK & ASSOCIATES, L.L.C., complaining of Defendants CITY OF NEW YORK, POLICE OFFICER CRYSTALLEE OTERO, SHIELD NUMBER 10151, POLICE OFFICER SANCHEZ, BADGE NUMBER UNKNOWN, and LIEUTENANT JAVIER SANTOS, BADGE NUMBER 4761, respectfully alleges as follows:

1. That Plaintiff PATRICK MCDOWELL is a black male, a citizen of the United States, and at all relevant times a resident of the City and State of New York.
2. That at all times hereinafter mentioned Defendant CITY OF NEW YORK was and still is a municipal corporation duly organized and existing under and by virtue of the General Municipal Law of the State of New York.
3. That at all times hereinafter mentioned Defendant CITY OF NEW YORK, its agents, servants and/or employees operated, maintained and controlled the New York City Police Department, including all the police officers thereof, a duly authorized police department, authorized to perform all functions of a police department under New York State Law, acting under the direction, control and supervision of the aforementioned municipal corporation CITY OF NEW YORK.
4. That at all times hereinafter mentioned, Defendant POLICE OFFICER CRYSTALLEE OTERO, SHIELD NUMBER 10151, was employed by Defendant CITY OF NEW YORK as a

police officer.

5. That at all times hereinafter mentioned, Defendant POLICE OFFICER CRYSTALLEE OTERO, SHIELD NUMBER 10151, acted within the scope of his employment for Defendant CITY OF NEW YORK.

6. That at all times hereinafter mentioned, Defendant POLICE OFFICER CRYSTALLEE OTERO, SHIELD NUMBER 10151, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of his office as a police officer for said city and state.

7. That at all times hereinafter mentioned, Defendant POLICE OFFICER SANCHEZ, BADGE NUMBER UNKNOWN, was employed by Defendant CITY OF NEW YORK as a police officer.

8. That at all times hereinafter mentioned, Defendant POLICE OFFICER SANCHEZ, BADGE NUMBER UNKNOWN, acted within the scope of his employment for Defendant CITY OF NEW YORK.

9. That at all times hereinafter mentioned, Defendant POLICE OFFICER SANCHEZ, BADGE NUMBER UNKNOWN, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of his office as a police officer for said city and state.

10. That at all times hereinafter mentioned, Defendant LIEUTENANT JAVIER SANTOS, BADGE NUMBER 4761, was employed by Defendant CITY OF NEW YORK as a police officer.

11. That at all times hereinafter mentioned, Defendant LIEUTENANT JAVIER SANTOS, BADGE NUMBER 4761, acted within the scope of his employment for Defendant CITY OF NEW YORK.

12. That at all times hereinafter mentioned, Defendant LIEUTENANT JAVIER SANTOS, BADGE NUMBER 4761, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the

authority of his office as a police officer for said city and state.

13. That on May 19, 2017, at approximately 1:55 P.M., Plaintiff PATRICK MCDOWELL was lawfully on Amsterdam Avenue, between 85th Street and 86th Street, in front of or near 528 Amsterdam Avenue, in the County, City and State of New York when he was suddenly accosted by members of the New York City Police Department including Defendants POLICE OFFICER CRYSTALLEE OTERO, SHIELD NUMBER 10151, POLICE OFFICER SANCHEZ, BADGE NUMBER UNKNOWN, and LIEUTENANT JAVIER SANTOS, BADGE NUMBER 4761.

14. That, at the aforementioned time and place, Defendant CITY OF NEW YORK through its agents, servants and/or employees including, but not limited to, Defendants POLICE OFFICER CRYSTALLEE OTERO, SHIELD NUMBER 10151, POLICE OFFICER SANCHEZ, BADGE NUMBER UNKNOWN, and LIEUTENANT JAVIER SANTOS, BADGE NUMBER 4761, handcuffed Plaintiff PATRICK MCDOWELL and placed him under arrest.

15. That at the aforementioned time and place, during the course of Plaintiff's arrest, Defendants POLICE OFFICER CRYSTALLEE OTERO, SHIELD NUMBER 10151, POLICE OFFICER SANCHEZ, BADGE NUMBER UNKNOWN, and LIEUTENANT JAVIER SANTOS, BADGE NUMBER 4761, without any just cause or provocation, willfully, wantonly, maliciously, and recklessly assaulted, attacked and abused Plaintiff PATRICK MCDOWELL.

16. That, as a result of this unprovoked assault, Plaintiff PATRICK MCDOWELL sustained injuries to, *inter alia*, his right biceps, right elbow, left arm, and left shoulder, suffered emotional distress, embarrassment, humiliation, and was deprived of his constitutional rights.

17. That within 90 days of the happening of the complained of incident, but more than 30 days prior to the commencement of this action, Plaintiff PATRICK MCDOWELL duly presented, served, and filed a Notice of Claim, in writing, upon Comptroller of Defendant CITY OF NEW YORK setting forth the name and post office address of claimant; the nature of the claim, the time when, the place where, and the manner in which the claim arose.

18. That more than 30 days have elapsed since service of said Notice of Claim and payment or adjustment thereof has been neglected or refused on behalf of Defendants CITY OF NEW YORK, POLICE OFFICER CRYSTALLEE OTERO, SHIELD NUMBER 10151, POLICE OFFICER SANCHEZ, BADGE NUMBER UNKNOWN, and LIEUTENANT JAVIER SANTOS, BADGE NUMBER 4761.

19. Upon information and belief, Defendant CITY OF NEW YORK waived its right to a municipal hearing regarding the above claim because Plaintiff PATRICK MCDOWELL was incarcerated.

20. This action is commenced within one year and ninety days after the cause of action arose.

AS AND FOR A FIRST CAUSE OF ACTION
UNDER NEW YORK STATE LAW FOR ASSAULT

21. Plaintiff PATRICK MCDOWELL repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

22. The aforementioned acts of Defendants POLICE OFFICER CRYSTALLEE OTERO, SHIELD NUMBER 10151, POLICE OFFICER SANCHEZ, BADGE NUMBER UNKNOWN, and LIEUTENANT JAVIER SANTOS, BADGE NUMBER 4761, placed Plaintiff PATRICK MCDOWELL in apprehension of imminent harmful and offensive bodily contact.

23. As a result of Defendants' conduct, Plaintiff PATRICK MCDOWELL has suffered physical pain and injury, mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

AS AND FOR A SECOND CAUSE OF ACTION
UNDER NEW YORK STATE LAW FOR BATTERY

24. Plaintiff PATRICK MCDOWELL repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

25. That Defendants POLICE OFFICER CRYSTALLEE OTERO, SHIELD NUMBER 10151, POLICE OFFICER SANCHEZ, BADGE NUMBER UNKNOWN, and LIEUTENANT JAVIER SANTOS, BADGE NUMBER 4761, touched Plaintiff PATRICK MCDOWELL in a

harmful and offensive manner.

26. That Defendants POLICE OFFICER CRYSTALLEE OTERO, SHIELD NUMBER 10151, POLICE OFFICER SANCHEZ, BADGE NUMBER UNKNOWN, and LIEUTENANT JAVIER SANTOS, BADGE NUMBER 4761, did so without privilege or consent from Plaintiff PATRICK MCDOWELL.

27. As a result of Defendants' conduct, Plaintiff PATRICK MCDOWELL has suffered physical pain and injury, mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

AS AND FOR A THIRD CAUSE OF ACTION
FOR EXCESSIVE FORCE UNDER 42 U.S.C. § 1983

28. Plaintiff PATRICK MCDOWELL repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

29. That the level of force employed by Defendants POLICE OFFICER CRYSTALLEE OTERO, SHIELD NUMBER 10151, POLICE OFFICER SANCHEZ, BADGE NUMBER UNKNOWN, and LIEUTENANT JAVIER SANTOS, BADGE NUMBER 4761, was objectively unreasonable, unnecessary, unjustified and was delivered maliciously and sadistically to punish Plaintiff PATRICK MCDOWELL, all in violation of Plaintiff PATRICK MCDOWELL's constitutional rights.

30. As a result of the aforementioned conduct of Defendants POLICE OFFICER CRYSTALLEE OTERO, SHIELD NUMBER 10151, POLICE OFFICER SANCHEZ, BADGE NUMBER UNKNOWN, and LIEUTENANT JAVIER SANTOS, BADGE NUMBER 4761, Plaintiff PATRICK MCDOWELL was subjected to excessive force and sustained physical injuries.

AS AND FOR A FOURTH CAUSE OF ACTION
FOR FAILURE TO INTERVENE

31. Plaintiff PATRICK MCDOWELL repeats, reiterates and realleges each and every allegation contained in this complaint.

32. That each and every individual Defendant Police Officer had an affirmative duty to intervene on Plaintiff PATRICK MCDOWELL's behalf to prevent the violation of his constitutional rights and failed to so intervene despite having had a realistic opportunity to do so.

33. That, as a result of the aforementioned conduct of the individual Defendants, Plaintiff PATRICK MCDOWELL's constitutional rights were violated and he was subjected to cruel and unusual punishment and sustained physical injuries.

AS AND FOR A FIFTH CAUSE OF ACTION
FOR MUNICIPAL LIABILITY

34. Plaintiff PATRICK MCDOWELL repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

35. That Defendants POLICE OFFICER CRYSTALLEE OTERO, SHIELD NUMBER 10151, POLICE OFFICER SANCHEZ, BADGE NUMBER UNKNOWN, and LIEUTENANT JAVIER SANTOS, BADGE NUMBER 4761, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

36. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to: a) using force in an unreasonable, unnecessary, and unjustified manner; and b) using force with the purpose and intent of maliciously and sadistically punishing individuals in their custody.

37. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of Plaintiff PATRICK MCDOWELL.

38. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff PATRICK MCDOWELL as alleged herein.

39. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff PATRICK MCDOWELL as alleged herein.

40. That Defendants POLICE OFFICER CRYSTALLEE OTERO, SHIELD NUMBER 10151, POLICE OFFICER SANCHEZ, BADGE NUMBER UNKNOWN, and LIEUTENANT JAVIER SANTOS, BADGE NUMBER 4761, while acting under the color of state law, were directly and actively involved in violating Plaintiff PATRICK MCDOWELL's constitutional rights.

41. All of the foregoing acts by the Defendants deprived Plaintiff PATRICK MCDOWELL of federally protected rights including, but not limited to, the right:

- A. Not to have excessive force imposed upon him;
- B. Not to have cruel and unusual punishment imposed upon him;
- C. To receive equal protection under the law.

AS AND FOR A SIXTH CAUSE OF ACTION
DEPRIVATION OF FEDERAL CIVIL RIGHTS UNDER 42 U.S.C. § 1983

42. Plaintiff PATRICK MCDOWELL repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

43. All of the aforementioned acts of Defendants POLICE OFFICER CRYSTALLEE OTERO, SHIELD NUMBER 10151, POLICE OFFICER SANCHEZ, BADGE NUMBER UNKNOWN, and LIEUTENANT JAVIER SANTOS, BADGE NUMBER 4761, were carried out under color of state law.

44. All of the aforementioned acts deprived Plaintiff PATRICK MCDOWELL of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Eight and Fourteenth Amendments to the Constitution of the United States of America, in violation of 42 U.S.C. § 1983.

AS AND FOR A SEVENTH CAUSE OF ACTION
FOR NEGLIGENT HIRING AND RETENTION

45. Plaintiff PATRICK MCDOWELL repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

46. That Defendant CITY OF NEW YORK was careless and reckless in hiring and retaining as and for its employees POLICE OFFICER CRYSTALLEE OTERO, SHIELD

NUMBER 10151, POLICE OFFICER SANCHEZ, BADGE NUMBER UNKNOWN, and LIEUTENANT JAVIER SANTOS, BADGE NUMBER 4761, in that said Defendant employees lacked the experience, deportment and ability to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK failed to exercise due care and caution in its hiring practices, and in particular, in hiring the Defendant employees who lacked the mental capacity and the ability to function as employees of Defendant CITY OF NEW YORK; in that the defendant employees lacked the maturity, sensibility and intelligence to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK knew of the lack of ability, experience, deportment and maturity of said defendant employees when they hired them to be employees; and, in that Defendant CITY OF NEW YORK, its agents, servants and/or employees were otherwise careless, negligent and reckless.

47. Defendant CITY OF NEW YORK knew, or should have known in the exercise of reasonable care, the propensities of Defendants POLICE OFFICER CRYSTALLEE OTERO, SHIELD NUMBER 10151, POLICE OFFICER SANCHEZ, BADGE NUMBER UNKNOWN, and LIEUTENANT JAVIER SANTOS, BADGE NUMBER 4761, to engage in the wrongful conduct heretofore alleged in this Complaint.

AS AND FOR A EIGHTH CAUSE OF ACTION
FOR NEGLIGENT TRAINING AND SUPERVISION

48. Plaintiff PATRICK MCDOWELL repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

49. The failure of Defendant CITY OF NEW YORK to adequately train, supervise, discipline or in any way control the behavior of Defendants POLICE OFFICER CRYSTALLEE OTERO, SHIELD NUMBER 10151, POLICE OFFICER SANCHEZ, BADGE NUMBER UNKNOWN, and LIEUTENANT JAVIER SANTOS, BADGE NUMBER 4761, in the exercise of their employment functions, and the failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK is evidence of the reckless lack of cautious regard for the rights of the public including Plaintiff PATRICK MCDOWELL. Further, the Defendants exhibited a lack of that degree of due care which prudent and reasonable individuals

would show.

50. The failure of Defendant, CITY OF NEW YORK, to train, supervise, discipline or in anyway control Defendants POLICE OFFICER CRYSTALLEE OTERO, SHIELD NUMBER 10151, POLICE OFFICER SANCHEZ, BADGE NUMBER UNKNOWN, and LIEUTENANT JAVIER SANTOS, BADGE NUMBER 4761, in the exercise of their employment functions and the failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK, was carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of New York, including Plaintiff PATRICK MCDOWELL

AS AND FOR A NINTH CAUSE OF ACTION
FOR RESPONDEAT SUPERIOR LIABILITY

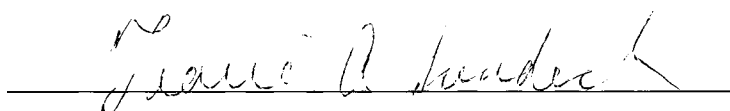
51. Plaintiff PATRICK MCDOWELL repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

52. Defendant CITY OF NEW YORK is vicariously liable for the acts of its employees and agents who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

53. As a result of the foregoing, Plaintiff PATRICK MCDOWELL is entitled to compensatory damages in the sum of Two Million Dollars (\$2,000,000.00) and is further entitled to punitive damages in the sum of Four Million Dollars (\$4,000,000.00).

WHEREFORE Plaintiff PATRICK MCDOWELL demands judgment against Defendants CITY OF NEW YORK, POLICE OFFICER CRYSTALLEE OTERO, SHIELD NUMBER 10151, POLICE OFFICER SANCHEZ, BADGE NUMBER UNKNOWN, and LIEUTENANT JAVIER SANTOS, BADGE NUMBER 4761, jointly and severally, in the amount of Two Million Dollars (\$2,000,000.00) in compensatory damages and Four Million Dollars (\$4,000,000.00) in punitive damages, plus reasonable attorney's fees, costs and disbursements of this action.

Dated: White Plains, New York
July 30, 2018

A handwritten signature in cursive script, appearing to read "Tracie A. Sundack", is written over a horizontal line.

TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
PATRICK MCDOWELL
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

ATTORNEY'S VERIFICATION

STATE OF NEW YORK }
COUNTY OF WESTCHESTER } SS.:

I, the undersigned, an attorney admitted to practice in the Courts of the State of New York, state:

That I am the attorney of record for the Plaintiff in the within action.

That I have read the foregoing SUMMONS and COMPLAINT and know the contents thereof; the same is true to my own knowledge, except for the matters therein alleged to be on information and belief, and as to those matters I believe them to be true. The reason this Verification is made by me and not by the Plaintiff is that Plaintiff resides outside the County where your affirmant maintains her office. The grounds of my belief as to all matters not stated upon my own knowledge are as follows: files maintained by my office and conversations with Plaintiff.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: White Plains, New York
July 30, 2018



TRACIE A. SUNDACK